Market Intelligence: What Semiconductor Companies Actually Signed

What their foundry, customer, and IP-license agreements reveal — from the public SEC exhibits. A benchmark, not a rating.

Every chip company signs the same three deals — with a **foundry** to make its chips, a **customer** to buy them, and a **licensor** for the IP underneath. The actual terms are filed as exhibits to SEC registration statements and annual reports: public, and almost never read. Here is what the market signed, organized by the term you'll negotiate.

Foundry & wafer-supply

- **Take-or-pay — paying for capacity whether or not you use it — is standard, but it tracks leverage.** SkyWater's customer commits to *"95% for the first Calendar Month … 90% for the second"* of its forecast; Everspin gave GlobalFoundries a *"binding volume commitment."* Yet Aquantia's buyer, Intel, committed to *nothing* — *"forecasts … do not constitute a … commitment by Buyer."*
- **Exclusivity can foreclose your second source — by contract, not cost.** Everspin is barred from licensing *"any Foreground IP to any foundry"* — the technology it jointly developed — but GlobalFoundries; SkyWater's process *"may be used … only at the Facility."*
- **The liability cap favors the fab.** SiTime's foundry caps its exposure at *"$5,000,000"* with a *three-year* exit; GlobalFoundries caps at the customer's *"TOTAL PURCHASE PRICE … IN THE TWELVE (12) MONTHS"* — while the buyer's commitment runs open-ended.

Customer & demand

- **A marquee logo can hide total leverage.** Cerebras's filed revenue is effectively one customer — G42, which is also an investor. And a marquee *customer* can still owe you nothing: Aquantia's buyer, Intel, *"may terminate … for convenience at any time,"* while *"Aquantia may not,"* commits to no volume, and embeds *"trade secrets of Intel"* in the parts it buys.
- **Committed vs. cancellable revenue.** Mobileye's three largest customers — *"35%, 19%, and 17% of revenue"* — had *no long-term written agreements.*

IP & licensing

- **"Owned" and "licensed" are different assets.** MetaOptics licenses its entire technology base — *"non-exclusive, … revocable for cause"* — from a Singapore state agency that also took *equity* and royalties; in Mobileye's most strategic collaboration, *"Intel solely owns all Project IPR to Intel Core Technology"*; SkyWater assigns its own improvements *back* to its former parent.

The ownership behind the counterparty

The controlling or mission-critical party is, far more often than not, **foreign or state-linked** — UAE (G42, Mubadala), Japan (Sanken, Bosch), the Singapore state (A*STAR), France (Soitec). That is exactly where **export-control and CFIUS** exposure sits — and where a purely financial view is blind.

These are the terms your own agreements will be measured against — by you before you sign, and by any investor or acquirer who reads them later. **We can run this same read on your contracts:** send one representative foundry, customer, or license agreement, under mutual NDA, and we'll benchmark it clause by clause against what the market actually signed.

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